

The Warehousing (Development and Regulatory) Authority, appointment of Chairperson and other members Rules, 2013

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The Warehousing (Development and Regulatory) Authority, appointment of Chairperson and other members Rules, 2013

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The Warehousing (Development and Regulatory) Authority, appointment of Chairperson and other members Rules, 2013

Rule

THE-WAREHOUSING-DEVELOPMENT-AND-REGULATORY-AUTHORITY-APPOINTMENT-OF-CHAIRPERSON-AND-OTHER-MEMBERS-RULES-2013 of 2013

Published on 26 June 2013

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The Warehousing (Development and Regulatory) Authority, appointment of Chairperson and other members Rules, 2013

Published vide Notification New Delhi, the 26th June, 2013

Ministry of Consumer Affairs, Food and Public Distribution

(Department of Food and Public Distribution)

GS.R. 408(E). - In exercise of the powers conferred by sub-section (1) of Section 50 read with Section 25 of the Warehousing (Development and Regulation) Act, 2007 (37 of 2007

), the Central Government hereby makes the following rules, namely:-

1.

Short title and commencement.

(1)

These rules may be called the Warehousing (Development and Regulatory) Authority, appointment of Chairperson and other members Rules, 2013.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definitions.

- In these rules, unless the context otherwise requires -

(a)

"Act" means the Warehousing (Development and Regulation) Act, 2007 (37 of 2007

);

(b)

"Committee" means the selection committee constituted under rule 3;

(c)

the words and expressions used in these rules and not defined but defined in the Act shall have the meanings respectively assigned to them in the Act.

3.

Selection Committee.

(1)

For the purpose of appointment to the post of Chairperson and other members of the Authority under Section 25 of the Act, the Central Government shall constitute a committee consisting of the following namely: -

(i)

Cabinet Secretary

Chairperson

(ii)

Secretary, Department of Personnel and Training

Member

(iii)

Secretary, Department of Legal Affairs

Member

(iv)

Chairman , Public Enterprises Selection Board, (only for the selection of Member, Warehousing Development and Regulatory Authority)

Member

(v)

Secretary, Department of Food and Public Distribution

Member Secretary

(2)

Any three members of the Committee including the Chairperson shall form a quorum for meeting of the Committee.

4.

Procedures for selection.

(1)

The Central Government shall invite applications by publishing the eligibility criteria specified in rule 5 allowing at least

forty five days for receipt of applications, in national dailies in English and Hindi and in the Employment News/Rozgar Samachar and in addition, the advertisement shall be circulated to all the Ministries and Departments.

(2)

The Committee shall shortlist and prepare a list of eligible candidates who meet the eligibility criteria.

(3)

The Committee may devise its own procedure including conducting interview for selection of Chairperson and other members of the Authority.

(4)

The Committee shall meet, as required, to recommend the names of suitable candidates for appointment of Chairperson and other members, as early as possible, preferably within three months from the date of the first meeting of the Committee.

(5)

The Committee shall recommend a panel of three candidates for each post, in order of merit, to the Department of Food and Public Distribution after screening of candidates through procedure as decided by the Committee.

(6)

On the basis of the recommendations of the Committee, the Central Government shall make separate lists of persons selected for appointment as Chairperson and other members and the said lists shall be forwarded to the Appointment Committee of the Cabinet for approval.

(7)

The lists specified in sub-rule (6) shall remain valid for a period of one year.

(8)

The appointment of the Chairperson and other members shall be made from the lists so prepared separately for each post, with the approval of the Appointment Committee of the Cabinet.

5.

Criteria for appointment.

(1)

The Chairperson and other members of the Authority should be persons of ability, integrity and standing who have wide knowledge and experience in inventory management, insurance, preservation, quality control, agriculture, banking, finance, economics, law or administration.

(2)

The appointment of Chairperson shall be from amongst persons who are holding or have held the post of Secretary to the Government of India; or equivalent in pay scale to Secretary to the Government of India in an autonomous body or research institution financed substantially by the Central Government or the State Government, or Chairperson or Managing Director in Public Sector Undertakings classified under Schedule 'A' by the Department of Public Enterprises (Ministry of Heavy Industries and Public Enterprises) or Chief Executive in large Public or Private Sector Finance Institution or Bank or Insurance company, or Chief Executive Officer of Private Sector Undertaking with comparable status of turnover vis-à-vis Schedule 'A' Public Sector Undertaking.

(3)

The appointment of other members shall be from amongst persons who are holding or have held the post of Joint Secretary to the Government of India; or equivalent in pay scale to Joint Secretary to the Government of India in an autonomous body or research institution financed substantially by the Central Government or the State Government, or full time Director on the Board of Directors of a public Sector Undertaking classified under Schedule 'A' by the Department of Public Enterprises (Ministry of Heavy Industries and Public Enterprises), or Director in a large Public or Private Sector Finance Institution or Bank or Insurance Company, or full time Director on the Board of Directors of a Private Sector Undertaking with comparable status or turnover vis-à-vis Schedule 'A' Public Sector Undertaking.

(4)

Subject to the provision of Section 26(1) of the Act, the reappointment of the Chairperson or any other member shall be made in accordance with procedures laid out in Rule 4.

6.

Deemed retired from Government Service.

- A person who, immediately before the date of assuming office as the Chairperson, or other member was in service of

the Central Government, shall be deemed to have retired from the service on the date on which he enters upon office of such Chairperson or members.

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